

WILLOWTREE PLANNING



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8 July 2024

REF: WTJ24-140

NSW Department of Planning, Housing and Infrastructure
Industry Assessments
Locked Bag 5022
Parramatta NSW 2124

Attention: Chris Ritchie – Director, Industry Assessments

**RE: REQUEST FOR INDUSTRY-SPECIFIC SEARS
PROPOSED DATA CENTRE DEVELOPMENT
PROPERTY AT 2 GLENDENNING ROAD, GLENDENNING (LOT 2 DP1137162)**

Dear Chris,

We write on behalf LCI Consultants (LCI) (the Proponent) to the NSW Department of Planning, Housing and Infrastructure (DPHI) in support of a request for industry-specific Secretary's Environmental Assessment Requirements (SEARs), under the Rapid Assessment Framework (RAF). The intent of the letter is to demonstrate that the proposal is eligible for industry-specific SEARs.

The proposal involves the construction of a data centre development at 2 Glendenning Road, Glendenning, legally described as Lot 2 DP1137162 (subject site).

The subject site is located within the Blacktown Local Government Area (LGA) and is zoned E4: General Industrial, pursuant to the *Blacktown Local Environmental Plan 2015* (BLEP 2015). The proposed development falls within the definition of 'data centre', which is permissible with consent in the zone and under the *State Environmental Planning Policy (Transport and Infrastructure) 2021* (Transport and Infrastructure SEPP).

The proposal seeks consent for three (3) data centre buildings with a total power consumption of approximately 202.4 megawatts (MW), which satisfies the definition of State Significant Development (SSD) pursuant to Schedule 1, Clause 25 of *State Environmental Planning Policy (Planning Systems) 2021* (Planning Systems SEPP), being:

- (1) *Development for the purpose of data centres that has a total power consumption of more than the relevant amount.*
- (2) *In this section—
relevant amount means—*

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- (a) for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023—10 megawatts, or*
- (b) for any other development—15 megawatts.*

This letter provides an overview of the proposed development and the relevant planning framework that applies to enable the issuance of industry-specific SEARs, which will then guide the preparation of a formal Environmental Impact Statement (EIS) for development of the subject site.

The proposal is considered to meet the criteria for industry-specific SEARs, based on the following:

- It does not constitute Designated Development;
- It is wholly permissible pursuant to the BLEP 2015 and the Transport and Infrastructure SEPP; and
- It does not involve a concept Development Application (DA).

The following sections provide an overview of the proposal to inform the NSW DPHI's decision making for the issuance of industry-specific SEARs.

1.0 SITE DESCRIPTION

The subject site is located at 2 Glendenning Road, Glendenning and is legally described as Lot 2 DP 1137162.

The subject site comprises a total area of 104,321m² and exhibits a primary frontage to Glendenning Road at the western boundary for approximately 185m. A secondary frontage to Woodstock Avenue is located along the southern boundary, for a length of approximately 335m. Woodstock Avenue is a cul-de-sac road, which terminates and leads to an unformed Council road.

The subject site comprises three (3) existing warehouse buildings that undertake various operations, including storage and logistics for auto parts (Building A), storage and logistics for elevator / escalator parts (Building B) and a zero-emission transport vehicle centre (Building C). The buildings are positioned toward the Glendenning Road frontage and cover approximately one half of the subject site. The remainder of the subject site to the rear is vacant and contains grass and sporadic vegetation. A patch of mature vegetation exists along the southern boundary, which is identified as outstanding biodiversity value under the *Biodiversity and Conservation Act 2016* (BC Act) (refer **Section 5.4** of this letter). Mature trees exist along the site's frontage along Glendenning Road and provide some screening of the existing buildings (refer site photographs in **Figure 5** and **Figure 6** below).

Vehicle access is obtained via four (4) vehicles crossings off Glendenning Road, which provide separate access for the two large tenants. Vehicle access is also provided off Woodstock Avenue for the southern tenant.

The subject site is traversed by overhead high voltage transmission lines and towers, managed by Endeavour Energy. This is demonstrated on the survey plan, depicted in **Figure 4**. A drainage reserve also exists directly north of the subject site. This is managed by Blacktown City Council.

The subject site is zoned E4 General Industrial and is surrounded by industrial land to the north, west and south (refer to the site context in **Figure 3**). Directly adjoining the subject site to the east is the 63ha Nurragingy Reserve. This reserve falls under the jurisdiction of the Western Parklands. The Eastern Creek is located within the reserve and runs along the eastern boundary of the subject site. The closest residential area is located approximately 400m to the west of the subject site on the opposite side of the Westlink M7 Motorway.



The cadastral map of the subject site is located in **Figure 1** and an aerial image is located in **Figure 2** below.

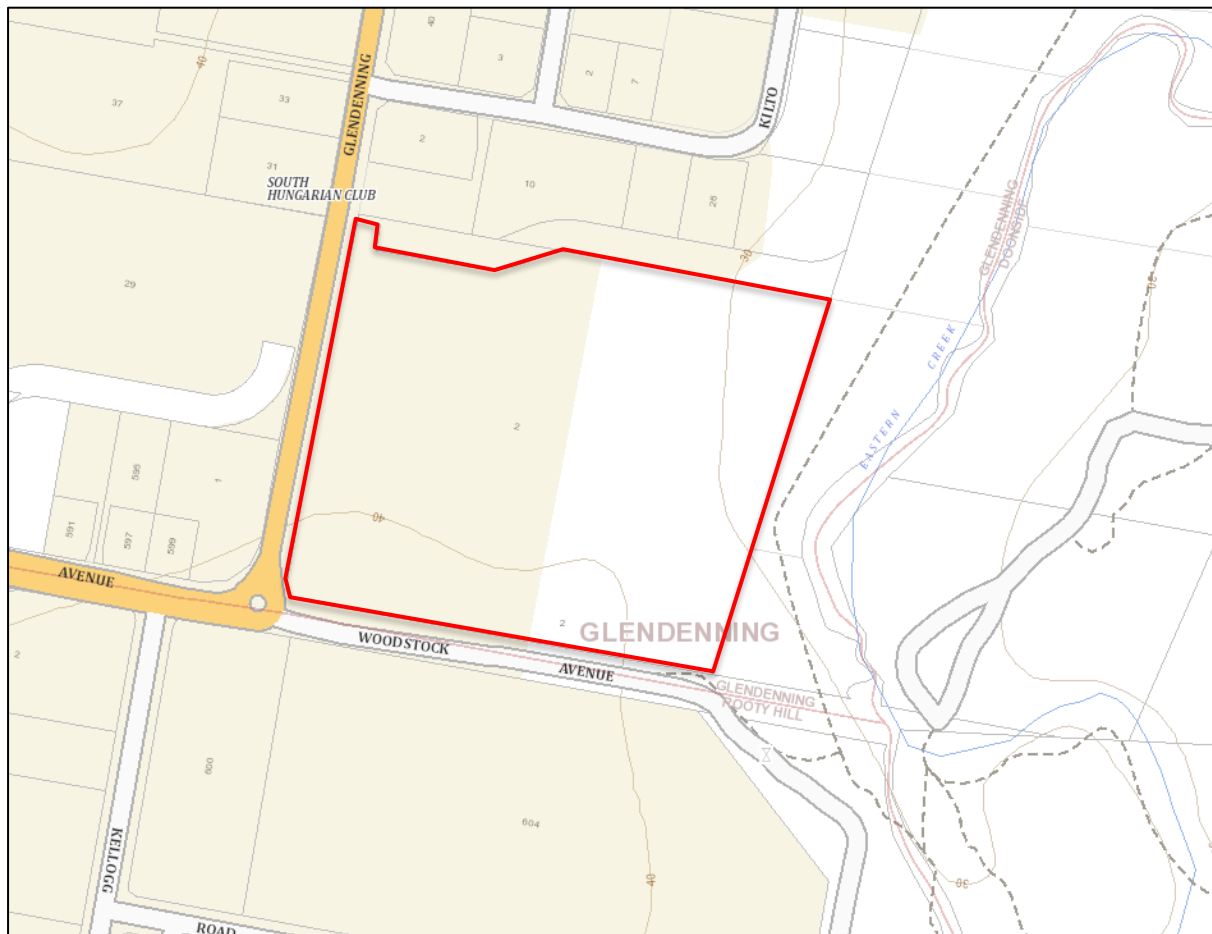


Figure 1. Cadastral Map (Source: SIX Maps, 2024)





Figure 2. Aerial Map of Subject Site (Source: NearMap, 2024)



Figure 3. Site Context (Source: NearMap, 2024)

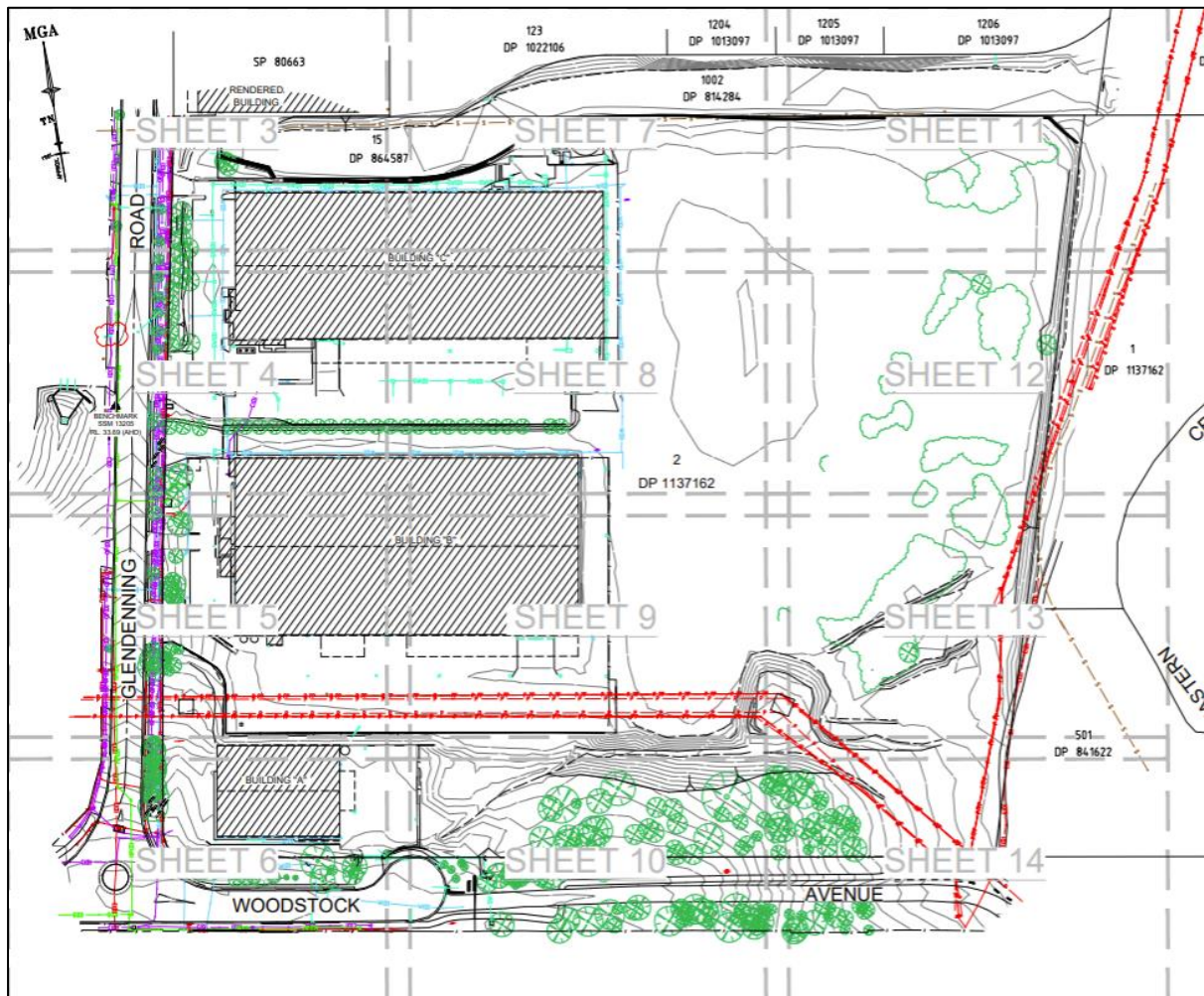


Figure 4. Survey Plan (Source: LTS, 2024)



Figure 5. Site Photograph from Glendenning Road (Source: Google Streetview, 2023)



Figure 6. Site Photograph from Glendenning Road (Source: Google Streetview, 2023)

2.0 PROPONENT DETAILS

The Proponent for this proposal is LCI Consultants, refer to **TABLE 1**.

TABLE 1: PROPONENT CONTACT DETAILS	
Company Details	LCI Consultants
Contact Name	Ben Avallone
Contact Number	0414 666 452
Email Address	Ben.Avallone@lciconsultants.com.au

3.0 PROJECT DETAILS

The proposal will seek development consent for the construction and operation of three (3) data centre buildings, with a total power consumption of approximately 202.4 mega-watts. The proposal would promote the enhanced development of Blacktown, ultimately providing for employment opportunities and advanced data storage facility to support the growth and development of IT infrastructure across Sydney and NSW.

The Concept Plans, prepared by Greenbox, are included within **Appendix 1**.

The particulars of this proposal are summarised below:

- Site preparation works, including tree clearing (number of trees to be confirmed);
- Bulk earthworks;
- Infrastructure comprising civil works and utilities servicing;
- Construction of three (3) data centre buildings, to be five (5) storeys in height (known as DC01, DC02 and DC03);
- Ancillary office, amenities and loading docks;
- Electrical substation and associated infrastructure;
- Diesel fuel storage for generators;
- On-site car parking; and



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- Complementary landscaping and offset planting (number of trees to be confirmed).

The proposed works would be constructed in three (3) stages, as follows:

- **Stage 1:** The first stage would include the construction of DC01, located at the rear of the subject site. The existing northern tenant would remain, whilst the existing southern tenants would cease operations and be demolished.
- **Stage 2:** The second stage would involve the construction of DC02. The existing northern tenant would also remain during this stage.
- **Stage 3:** The final stage would involve the demolition of the northern tenant and the construction of DC03.

It is anticipated that demolition works would be sought under complying development. A staging plan is included with the Concept Plans at **Appendix 1**.

The proposed development includes those works as identified in **TABLE 2** below. It is acknowledged that these details are approximate and will be developed as the proposal progresses.

TABLE 2: DEVELOPMENT PARTICULARS

Component	Proposed
Site Area	104,321 m ²
Primary Land Use	Data Centre (High Technology Industry)
Ancillary Land Uses	Ancillary offices and amenities
Gross Floor Area	Total 53,750m ² (DC01 – 21,500m ² , DC02 – 13,950m ² and DC03 – 21,500m ²)
Substations	Total 3,225m ² (1,075m ² x 3)
Data Capacity	Total 202.4MW (DC01 – 79.2MW, DC02 – 44MW and DC03 – 79.2MW)
Number of Generators	97 (DC01 – 39, DC02 – 19 and DC03 – 39)
Height	43.2m each building
Roads / Driveways	3 vehicular crossovers to Glendenning Road
Car Parking	150 spaces

4.0 STATUTORY CONTEXT

This section sets out the statutory planning framework and controls relevant to the proposal.

The following statutes, strategic plans and policies have been considered as part of the development planning phase:

Commonwealth Planning:

- *Commonwealth Environment Protection and Biodiversity Conservation Act 1999*

State Planning:

- *Environmental Planning and Assessment Act 1979*
- *Environmental Planning and Assessment Regulation 2021*
- *Biodiversity Conservation Act 2016*
- *Rural Fires Act 1997*



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- *Protection of the Environment Operations Act 1997*
- *Water Management Act 2000*
- *State Environmental Planning Policy (Planning Systems) 2021*
- *State Environmental Planning Policy (Transport and Infrastructure) 2021*
- *State Environmental Planning Policy (Resilience and Hazards) 2021*
- *State Environmental Planning Policy (Biodiversity and Conservation) 2021*
- *State Environmental Planning Policy (Sustainable Buildings) 2022*

Local Planning:

- *Blacktown Local Environmental Plan 2015*
- *Blacktown Development Control Plan 2015*

4.1 Environment Protection and Biodiversity Conservation Act 1999

Under the Commonwealth *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act), any action (which includes a development, project or activity) that is considered likely to have a significant impact on Matters of National Environmental Significance (MNES) (including nationally threatened ecological communities and species and listed migratory species) must be referred to the Commonwealth Minister for the Environment. The purpose of the referral is to allow a decision to be made about whether an action requires approval at a Commonwealth level. If an action is considered likely to have significant impacts on MNES, it is declared a “controlled action” and formal Commonwealth approval is required.

The requirements of the EPBC Act will be considered as part of the forthcoming EIS.

4.2 Environmental Planning and Assessment Act 1979

The *Environmental Planning and Assessment Act 1979* (EP&A Act) is the overarching governing statute for all development in NSW and pursuant to Part 4, the proposal is considered SSD under the Planning Systems SEPP.

4.2.1 Section 4.15(1) of the EP&A Act 1979

Section 4.15(1) of the EP&A Act specifies the matters, that a consent authority must consider when determining a DA. The forthcoming EIS will consider and address all matters outlined in Section 4.15 of the EP&A Act.

4.2.2 Section 4.46 of the EP&A Act 1979 – Integrated Development

Section 4.46 of the EP&A Act defines ‘Integrated Development’ as matters which require consent from the consent authority and one or more authorities under related legislation. As the proposal is SSD, the integrated provisions will not apply.

It is noted that approval will be required post-development consent for the vehicle crossings in accordance with Section 138 of the Roads Act 1993.

5.3 Environmental Planning and Assessment Regulation 2021

5.3.1 Section 7 – Designated Development

Section 7(1) of the EP&A Regulation states that:

“Development described in Schedule 3, Part 2 is declared to be designated development unless it is not designated development under Schedule 3, Part 3.”



The proposal, being a data centre development, does not trigger Designated Development pursuant to Schedule 3 of the EP&A Regulation.

5.4 Biodiversity Conservation Act 2016

The BC Act and *Biodiversity Conservation Regulation 2017* (BC Regulation) seek to maintain a healthy, productive and resilient environment for the greatest well-being of the community, now and into the future, consistent with the principles of ecologically sustainable development.

Pursuant to Section 7.2(l) of the BC Act, development or an activity is likely to significantly affect threatened species if:

- (a) it is likely to significantly affect threatened species or ecological communities, or their habitats, according to the test in section 7.3, or*
- (b) the development exceeds the biodiversity offsets scheme threshold if the biodiversity offsets scheme applies to the impacts of the development on biodiversity values, or*
- (c) it is carried out in a declared area of outstanding biodiversity value.*

As indicated in **Figure 7** below, part of the subject site is mapped as containing biodiversity values along the southern boundary and within the northeastern corner.



Figure 7. Biodiversity Value Map (Source: NSW Legislation, 2024)

Pursuant to Section 7.9 of the BC Act, an SSD “is to be accompanied by a biodiversity development assessment report unless the Planning Agency Head and the Environment Agency Head determine that the proposed development is not likely to have any significant impact on biodiversity values”.



No works are proposed within the southern area mapped as containing biodiversity values, but some works will be undertaken within the northeastern corner of the subject site. Investigations are ongoing to determine whether a BDAR or BDAR waiver will be sought.

5.5 Rural Fires Act 1997

The Rural Fires Act seek to ensure that development does not increase the risk of bushfire attack or increase risk to human life, property or other assets. The subject site is mapped as bushfire prone land as indicated in **Figure 8** below.

The EIS will be supported by a Bushfire Assessment and will address the relevant requirements of *Planning for Bushfire Protection 2019*.



Figure 8. Bushfire Prone Map (Source: NSW Legislation, 2024)

5.6 Protection of the Environment Operations Act 1997

Schedule 1 of the *Protection of the Environment Operations Act 1997* (POEO Act) contains a core list of activities that require a licence before they may be undertaken or carried out. The definition of an 'activity' for the purposes of the POEO Act is:

"an industrial, agricultural or commercial activity or an activity of any other nature whatever (including the keeping of a substance or an animal)."

Under the POEO Act, Schedule 1, Clause 9(1) 'petroleum products storage', which would include diesel fuel storage, is a Scheduled Activity. Capacity to store greater than 2,000 tonnes of diesel fuel requires an Environmental Protection Licence (EPL) from the NSW EPA.

The requirement for an EPL from the NSW EPA will be considered following the preparation of the finalised design and ensuing Preliminary Risk Screening has been undertaken for the proposal. Consideration of associated potentially hazardous materials will be included with the EIS.



It is anticipated that the proposed generators would not constitute a scheduled activity under Schedule 1, Section 17 of the POEO Act, as the total operating hours is anticipated to be below the 200-hour limit. This will be confirmed as the design is refined.

5.7 Roads Act 1993

Pursuant to Section 138 of the Roads Act 1993, consent from the appropriate roads authority will be required to carry out works on a public road. This would include works associated with the provision of site vehicular access.

5.8 State Environmental Planning Policy (Planning Systems) 2021

Schedule 1 of the Planning Systems SEPP includes provisions for developments to be undertaken as SSD. Section 25 is relevant to the proposed development:

- 1) *Development for the purpose of data centres that has a total power consumption of more than the relevant amount.*
- 2) *In this section—
relevant amount means—*
 - (a) *for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023—10 megawatts,*
or
 - (b) *for any other development—15 megawatts.*

As shown on the Concept Plans in **Appendix 1**, the proposal is for three (3) data centre buildings with a total power consumption of approximately 202.4MW, thus the SSD provisions apply.

5.9 State Environmental Planning Policy (Transport and Infrastructure) 2021

The Transport and Infrastructure SEPP aims to facilitate the effective delivery of infrastructure across NSW.

Part 2.3, Division 3 refers to data centres and affirms that development for the purpose of data centres may be carried out by any person with consent in a prescribed zone. The subject site is zoned E4 General Industrial under BLEP 2015 (refer to **Section 5.13**), this zoning is a prescribed zone under this division.

5.9.1 Development likely to affect an electricity transmission or distribution network

Clause 2.48 of the Transport and Infrastructure SEPP relates to development applications for development within 5m of an exposed overhead electricity power line. Clause 2.48(2) requires that:

- Before determining a development application (or an application for modification of a consent) for development to which this section applies, the consent authority must—*
- (a) *give written notice to the electricity supply authority for the area in which the development is to be carried out, inviting comments about potential safety risks, and*
 - (b) *take into consideration any response to the notice that is received within 21 days after the notice is given.*

The subject site contains high voltage transmission lines, which are owned and operated by Endeavour Energy (refer **Section 1.0**). Consultation will be undertaken within Endeavour Energy to confirm the proposed development will not cause potential safety risks to the electricity infrastructure.



5.9.2 Traffic generating development

Pursuant to Clause 2.121 of the Transport and Infrastructure SEPP, certain proposed developments are known as Traffic Generating Development, and must be referred to Transport for NSW (TfNSW) for concurrence. Schedule 3 of the Transport and Infrastructure SEPP lists the types of development that are defined as Traffic Generating Development. The referral thresholds for 'industries' includes sites of:

- 20,000m² in site area or (if the site area is less than the gross floor area) gross floor area; or
- 5,000m² in site area or (if the site area is less than the gross floor area) gross floor area, if the site has access to classified road or to a road that connects to classified road.

The subject site is located on a local road, with access to a classified road. The subject site is larger than the specified thresholds and therefore development on the subject site would be considered Traffic Generating Development, requiring concurrence from TfNSW.

The EIS will be supported by a robust Transport Accessibility Impact Assessment (TAIA). Engagement will also be undertaken with TfNSW prior to lodgement.

5.10 State Environmental Planning Policy (Resilience and Hazards) 2021

The *State Environmental Planning Policy (Resilience and Hazards) 2021* (Resilience and Hazards SEPP) contains planning provisions relating to:

- land use planning within the coastal zone, in a manner consistent with the objects of the *Coastal Management Act 2016*.
- management of hazardous and offensive development.
- remediation of contaminated land and to minimise the risk of harm.

In relation to the subject site, the following matters are highlighted.

5.10.1 Hazardous and offensive development

The proposed data centres may require the storage and/or handling of some potentially dangerous goods or materials, i.e., lithium batteries and diesel fuel storage.

As such, a preliminary risk screening analysis will be undertaken in accordance with the Industry-specific SEARs to determine whether a Preliminary Hazard Analysis is required.

5.10.2 Remediation of land

Under Chapter 4 of the Resilience and Hazards SEPP, where a DA is made, the consent authority must not grant consent unless:

- (a) it has considered whether the land is contaminated, and*
- (b) if the land is contaminated, it is satisfied that the land is suitable in its contaminated state (or will be suitable, after remediation) for the purpose for which the development is proposed to be carried out, and*
- (c) if the land requires remediation to be made suitable for the purpose for which the development is proposed to be carried out, it is satisfied that the land will be remediated before the land is used for that purpose.*

A Detailed Site Investigation (DSI) will form part of the forthcoming EIS. It is noted that the site assessment will be thoroughly reviewed and a Remedial Action Plan (RAP) may be required depending on the outcomes of the site assessment outcomes.



5.11 State Environmental Planning Policy (Biodiversity and Conservation) 2021

The *State Environmental Planning Policy (Biodiversity Conservation) 2021* (Biodiversity Conservation SEPP) contains:

- planning rules and controls for the clearing of native vegetation in NSW on land zoned for urban and environmental purposes that is not linked to a development application.
- the land use planning and assessment framework for koala habitat.
- provisions which establish a consistent and co-ordinated approach to environmental planning and assessment along the River Murray.
- provisions seeking to protect and preserve bushland within public open space zones and reservations.
- provisions which aim to prohibit canal estate development.
- provisions to support the water quality objectives for the Sydney drinking water catchment.
- provisions to protect the environment of the Hawkesbury-Nepean River system.
- provisions to manage and improve environmental outcomes for Sydney Harbour and its tributaries.
- provisions to manage and promote integrated catchment management policies along the Georges River and its tributaries.
- provisions which seek to protect, conserve and manage the World Heritage listed Willandra Lakes property.

Tree removal will be confirmed as part of the EIS and will be supported by an Arboricultural Impact Assessment. Consideration will be given in the EIS to the requirements of the Biodiversity Conservation SEPP, as well as any mitigation planting under the *Blacktown Development Control Plan 2015* (BDCP 2015).

5.12 State Environmental Planning Policy (Sustainable Buildings) 2022

The State Environmental Planning Policy (Sustainable Buildings) 2022 (Sustainable Buildings SEPP) encourages the design and delivery of more sustainable buildings across NSW and commenced on 1 October 2023. It sets sustainability standards for both residential and non-residential development and contributes to NSW's target of achieving net zero by 2050.

Chapter 3 of the Sustainable Buildings SEPP is relevant for non-residential development. The EIS will address the matters listed in Clause 3.2 (development consent for non-residential development) and will be supported by an Ecologically Sustainable Development (ESD) Report.

5.13 Blacktown Local Environmental Plan 2015

The subject site is zoned E4 General Industrial under the provisions of BLEP 2015. **Figure 9** below provides a representation of the subject site and surrounding land zoning under the BLEP 2015.



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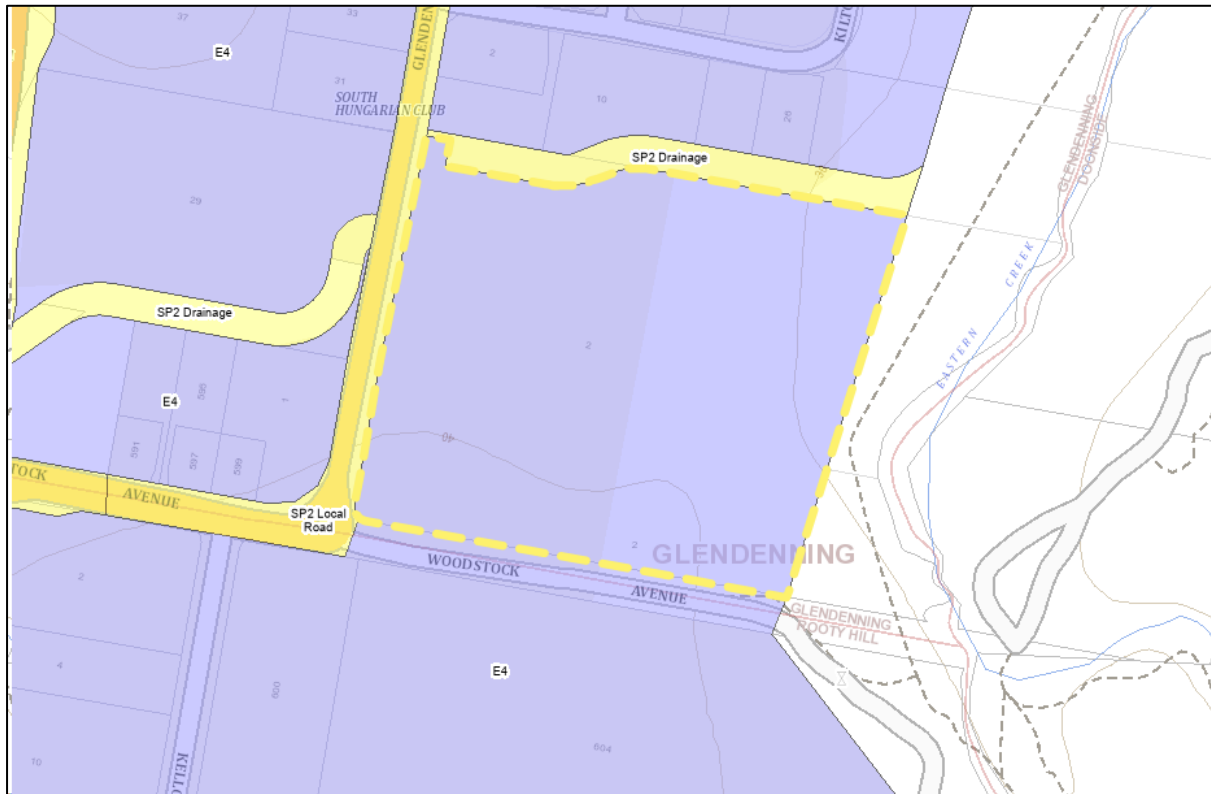


Figure 9. LEP Land Use Zones (Source: NSW Planning Portal, 2024)

5.13.1 Land use

Under the *Standard Instrument - Principal Local Environmental Plan* the proposal would be considered a 'data centre', which is defined as follows:

data centre means a building or place the principal purpose of which is to collect, distribute, process or store electronic data using information technology.

Note—

Data centres are a type of high technology industry—see the definition of that term in this Dictionary.

high technology industry means a building or place predominantly used to carry out an industrial activity that involves any of the following—

- (a) electronic or micro-electronic systems, goods or components,
- (b) information technology (such as computer software or hardware),
- (c) instrumentation or instruments of a scientific, industrial, technological, medical or similar nature,
- (d) biological, pharmaceutical, medical or paramedical systems, goods or components,
- (e) film, television or multi-media technologies, including any post production systems, goods or components,
- (f) telecommunications systems, goods or components,
- (g) sustainable energy technologies,
- (h) any other goods, systems or components intended for use in a science or technology related field,



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and includes a data centre, but does not include a building or place used to carry out an industrial activity that presents a hazard or potential hazard to the neighbourhood or that, because of the scale and nature of the processes involved, interferes with the amenity of the neighbourhood.

Note—

High technology industries are a type of light industry—see the definition of that term in this Dictionary.

5.13.2 Permissibility

The objectives of the zone are as follows:

- *To provide a range of industrial, warehouse, logistics and related land uses.*
- *To ensure the efficient and viable use of land for industrial uses.*
- *To minimise any adverse effect of industry on other land uses.*
- *To encourage employment opportunities.*
- *To enable limited non-industrial land uses that provide facilities and services to meet the needs of businesses and workers.*
- *To minimise adverse impacts on the natural environment.*

Within the E4 zone the following are permissible without consent:

- *Nil.*

Within the E4 zone the following are permissible with consent:

- *Bee keeping; Building identification signs; Business identification signs; Depots; Food and drink premises; Freight transport facilities; Funeral homes; Garden centres; General industries; Goods repair and reuse premises; Hardware and building supplies; Heliports; Industrial retail outlets; Industrial training facilities; Kiosks; **Light industries**; Local distribution premises; Neighbourhood shops; Oyster aquaculture; Take away food and drink premises; Tank-based aquaculture; Vehicle sales or hire premises; Warehouse or distribution centres; Any other development not specified in item 2 or 4.*

Within the E4 zone the following are prohibited:

- *Agriculture; Air transport facilities; Airstrips; Amusement centres; Camping grounds; Caravan parks; Cemeteries; Commercial premises; Correctional centres; Eco-tourist facilities; Educational establishments; Entertainment facilities; Environmental facilities; Exhibition homes; Exhibition villages; Extractive industries; Farm buildings; Forestry; Function centres; Health services facilities; Heavy industrial storage establishments; Heavy industries; Helipads; Highway service centres; Home-based child care; Home businesses; Home occupations; Home occupations (sex services); Information and education facilities; Marinas; Open cut mining; Recreation facilities (major); Recreation facilities (outdoor); Registered clubs; Residential accommodation; Restricted premises; Signage; Tourist and visitor accommodation; Veterinary hospitals; Wharf or boating facilities; Wholesale supplies.*

The data centre is considered a light industry and is permissible with consent in the E4 General Industrial zone, as well the Transport and Infrastructure SEPP.



6.0 OTHER APPROVALS/COMMENTS

No other approvals are sought for this proposal.

7.0 INDUSTRY-SPECIFIC SEARS

This section reviews the relevant industry-specific SEARs and includes commentary on how the Applicant intends to respond to each item, where applicable. Refer to **TABLE 3** for further details.

TABLE 3: INDUSTRY-SPECIFIC SEARS		
Issue and Assessment Requirements	Documentation	Applicant Comments
1. Statutory Context - Address all relevant legislation, environmental planning instruments (EPIs) (including drafts), plans, policies, guidelines and planning circulars. - Identify compliance with applicable development standards and provide a detailed justification for any non-compliances. - Provide an explanation of how the development as described in the EIS is consistent with the development as was described in the request for SEARs (including any components that were not SSD) and provide a justification for any differences. - Address the requirements of any approvals applying to the site, including any concept approval or recommendation from any Gateway determination.	Address in EIS.	Noted – the proposal will address the requirement of this item.
2. Estimated Development Cost and Employment - Provide the estimated development cost (EDC) of the development prepared in accordance with the relevant planning circular using the Standard Form of EDC Report. - Provide an estimate of the retained and new jobs that would be created during the construction and operational phases of the development, including details of the methodology to determine the figures provided.	EDC Report.	Noted – an EDC Report and estimate of the employment numbers will support the proposal.
3. Design Quality Demonstrate how the development will achieve:	Address in EIS. If required: Design Review Summary (where the project has been	Design quality will be addressed in the EIS, however it is noted that a Design Review Summary, Design Excellence



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○ design excellence in accordance with any applicable EPI provisions. ○ good design in accordance with the seven objectives for good design in <i>Better Placed</i>. ▪ Where required by an EPI or concept approval, demonstrate that the development has been subject to a competitive design process, or reviewed by the State Design Review Panel (SDRP) where required under the <i>NSW SDRP: Guidelines for Project Teams</i>. Recommendations are to be addressed prior to lodgement.	reviewed by the SDRP). ▪ Design Excellence Strategy (where design excellence is required by an EPI). ▪ Competition Report (where a competitive design process has been held).	Strategy and Competition Report are not required for a proposal of this nature.
4. Built Form and Urban Design ▪ Explain and illustrate the proposed built form, including a detailed site and context analysis to justify the proposed site planning and design approach. ▪ Demonstrate how the proposed built form (layout, height, bulk, scale, separation, setbacks, interface and articulation) addresses and responds to the context, site characteristics, streetscape and existing and future character of the locality. ▪ Demonstrate how the building design will deliver a high-quality development, including consideration of façade design, articulation, materials, finishes, colours, any signage and integration of services. ▪ Assess how the development complies with the relevant accessibility requirements.	▪ Architectural drawings. ▪ Design Report. ▪ Survey Plan. ▪ BCA Compliance Report. ▪ Accessibility Report.	Noted – the proposal will address the requirements of this item through the listed reports.
5. Visual Impact ▪ Provide a visual analysis of the development from key viewpoints, including photomontages or perspectives showing the proposed and likely future development. ▪ Where the visual analysis has identified potential for significant visual impact, provide a visual impact assessment that addresses the impacts of the development on the existing catchment.	▪ Visual Analysis. ▪ Visual Impact Assessment.	Noted – the proposal will be informed by photomontages and perspective drawings, where necessary, and include a Visual Impact Assessment.
6. Traffic, Transport and Accessibility ▪ Provide a transport and accessibility impact assessment, which includes:	▪ Transport and Accessibility Impact Assessment.	Noted – the proposal will address the requirements of this item



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○ details of all traffic types and volumes likely to be generated during construction and operation, including a description of key access and haul routes. ○ an assessment of the predicted impacts of this traffic on road safety and the capacity of the road network, including consideration of cumulative traffic impacts at key intersections (using industry standard modelling). ○ plans demonstrating how all vehicles likely to be generated during construction and operation and awaiting loading, unloading or servicing can be accommodated on the site to avoid queuing in the street network. ○ details and plans of any proposed internal road network, loading dock provision and servicing, on-site parking provisions, and sufficient pedestrian and cyclist facilities, in accordance with the relevant Australian Standards. ○ swept path analysis for the largest vehicle requiring access to the development. ○ details of road upgrades, infrastructure works, or new roads or access points required for the development if necessary. ▪ Provide a Construction Traffic Management Plan detailing predicted construction vehicle movements, routes, access and parking arrangements, coordination with other construction occurring in the area, and how impacts on existing traffic, pedestrian and bicycle networks would be managed and mitigated.	▪ Construction Traffic Management Plan. ▪ Green Travel Plan or equivalent.	through the listed reports
7. Trees and Landscaping ▪ Provide a detailed site-wide landscape plan, that: ○ identifies the number and location of trees to be removed and retained, and how opportunities to retain significant	Landscape Plan.	Noted – the proposal will include a Landscape Plan and detailed planting strategy in response to site conditions.



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trees have been explored and/or informs the plan. - o details the proposed site planting, including location, number and species of plantings, heights of trees at maturity and proposed canopy coverage (as a percentage of the site area). - o demonstrates how the proposed development would: – contribute to long term landscape setting in respect of the site and streetscape. – mitigate the urban heat island effect and ensure appropriate comfort levels on-site. – contribute to the objective of increased urban tree canopy cover. – maximise opportunities for green infrastructure, consistent with <i>Greener Places</i> and having regard to any bush fire risk.		
8. Ecologically Sustainable Development (ESD) ▪ Identify how ESD principles (as defined in section 193 of the EP&A Regulation) are incorporated in the design and ongoing operation of the development. ▪ Demonstrate how the development will meet or exceed the relevant industry recognised building sustainability and environmental performance standards. ▪ Demonstrate how the development minimises greenhouse gas emissions (reflecting the Government's goal of net zero emissions by 2050) and consumption of energy, water (including water sensitive urban design) and material resources. ▪ If Chapter 3 of SEPP (Sustainable Buildings) 2022 applies: - o demonstrate how the development has been designed to enable the general sustainability	ESD Report.	Noted – the proposal will be supported by an ESD Report.



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provisions, as defined in Chapter 3.2(1). ○ provide a NABERS Embodied Emissions Material Form to disclose the amount of embodied emissions attributable to the development in accordance with section 35B of the EP&A Regulation.		
9. Biodiversity ▪ Assess any biodiversity impacts associated with the development in accordance with the <i>Biodiversity Conservation Act 2016</i> and the <i>Biodiversity Assessment Method 2020</i>, including the preparation of a Biodiversity Development Assessment Report (BDAR), unless a waiver is granted, or the site is on biodiversity certified land. ▪ If the development is on biodiversity certified land, provide information to identify the site (using associated mapping) and demonstrate the proposed development is consistent with the relevant biodiversity measure conferred by the biodiversity certification.	Biodiversity Development Assessment Report or BDAR Waiver.	Noted – the proposal will be supported by either BDAR waiver or a BDAR.
10. Back-up Power System ▪ Provide a detailed overview of any proposed back-up power system, including the scale and capacity of the system, and any associated testing procedures (frequency and duration). ▪ Provide a detailed justification for the proposed back-up power system, including alternatives considered.	Address in EIS.	Noted – the proposal will address the requirement of this item.
11. Air Quality ▪ Provide an assessment of air quality impacts, prepared in accordance with the relevant NSW Environment Protection Authority (EPA) guidelines. The assessment must address construction works and include modelling of emissions and air pollutants from predicted operations (including testing of the back-up power system) and a peak emission and air pollutant scenario, and outline the proposed mitigation, management	Air Quality Impact Assessment.	Noted – the proposal will be supported by an Air Quality Impact Assessment.



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and monitoring measures that would be implemented.		
12. Noise and Vibration Provide a noise and vibration assessment prepared in accordance with the relevant EPA guidelines. The assessment must detail construction and operational noise and vibration impacts on nearby sensitive receivers and structures and outline the proposed management and mitigation measures that would be implemented.	Noise and Vibration Impact Assessment.	Noted – the proposal will be supported by a Noise and Vibration Impact Assessment.
13. Ground and Water Conditions - Assess potential impacts on soil resources and related infrastructure and riparian lands on and near the site, including soil erosion, salinity and acid sulfate soils. - Provide a Surface and Groundwater Impact Assessment that assesses potential impacts on: - surface water resources (quality and quantity) including related infrastructure, hydrology, dependent ecosystems, drainage lines, downstream assets and watercourses. - groundwater resources in accordance with the <i>Groundwater Guidelines</i>.	- Geotechnical Assessment. - Surface and Groundwater Impact Assessment. - Salinity Management Plan and/or Acid Sulfate Soils Management Plan.	Noted – the proposal will address the requirements of this item through the listed reports.
14. Water Management - Provide an Integrated Water Management Plan for the development that: - is prepared in consultation with the local council and any other relevant drainage or water authority. - outlines the water-related servicing infrastructure required by the development (informed by the anticipated annual and ultimate increase in servicing demand) and evaluates opportunities to reduce water demand (such as recycled water provision). - details the proposed drainage design (stormwater and wastewater) for the site including any on-site detention facilities,	Integrated Water Management Plan.	Noted – the proposal will be supported by an Integrated Water Management Plan.



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water quality management measures and nominated discharge points, on-site sewage management, and measures to treat, reuse or dispose of water. ○ demonstrates compliance with the local council or other drainage or water authority requirements and avoids adverse downstream impacts. ▪ Where drainage infrastructure works are required that would be handed over to the local council, or other drainage or water authority, provide full hydraulic details and detailed plans and specification of proposed works that have been prepared in consultation with, and comply with the relevant standards of, the local council or other drainage or water authority.		
15. Flooding Risk ▪ Identify any flood risk on-site having regard to adopted flood studies, the potential effects of climate change, and any relevant provisions of the <i>NSW Floodplain Development Manual</i>. ▪ Where the development could alter flood behaviour, affect flood risk to the existing community or expose its users to flood risk, provide a flood impact and risk assessment (FIRA) prepared in accordance with the Flood Impact and Risk Assessment – Flood Risk Management Guide LU01. ▪ Detail design solutions and operational procedures to mitigate flood risk where required.	Flood Risk Assessment.	Noted – the proposal will be supported by a Flood Risk Assessment.
16. Hazards and Risk ▪ Where there are dangerous goods and hazardous materials associated with the development provide a preliminary risk screening in accordance with Chapter 3 of SEPP (Resilience and Hazards) 2021. ▪ Where required by SEPP (Resilience and Hazards) 2021, provide a Preliminary Hazard Analysis prepared in accordance with <i>Hazardous Industry Planning Advisory Paper No.6 – Guidelines for Hazard Analysis and Multi-Level Risk Assessment</i>.	Preliminary Hazard Analysis. If required: ▪ Hazard Analysis (Pipeline)	Noted – the proposal will be supported by a preliminary risk screening assessment, and if required a Preliminary Hazard Analysis.



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If the development is adjacent to or on land in a pipeline corridor, report on consultation outcomes with the operator of the pipeline, and prepare a hazard analysis.		
17. Contamination and Remediation In accordance with Chapter 4 of SEPP (Resilience and Hazards) 2021, assess and quantify any soil and groundwater contamination and demonstrate that the site is suitable (or will be suitable, after remediation) for the development.	Preliminary Site Investigation. If required: - Detailed Site Investigation. - Remedial Action Plan. - Preliminary Long-term Environmental Management Plan.	Noted – the proposal will be supported by a Detailed Site Investigation (as a minimum).
18. Waste Management - Identify, quantify and classify the likely waste streams to be generated during construction and operation. - Provide the measures to be implemented to manage, reuse, recycle and safely dispose of this waste. - Identify appropriate servicing arrangements for the site. - If buildings are proposed to be demolished or altered, provide a hazardous materials survey.	Waste Management Plan. Hazardous Material Survey.	Noted – the proposal will be supported by a Waste Management Plan and Hazardous Material Survey.
19. Aboriginal Cultural Heritage Provide an Aboriginal Cultural Heritage Assessment Report (ACHAR) prepared in accordance with relevant guidelines, identifying, describing and assessing any impacts to any Aboriginal cultural heritage sites or values associated with the site.	Aboriginal Cultural Heritage Assessment Report.	Noted – the proposal will be supported by an Aboriginal Cultural Heritage Assessment Report.
20. Environmental Heritage Where there is potential for direct or indirect impacts on the heritage significance of items of environmental heritage, provide a Statement of Heritage Impact and Archaeological Assessment (if potential impacts to archaeological resources are identified), prepared in accordance with the relevant guidelines, which assesses any impacts and outlines measures to ensure they are minimised and mitigated.	- Statement of Heritage Impact. - Archaeological Assessment.	Noted – the proposal will be supported by a Statement of Heritage Impact.
21. Social Impact Provide a Social Impact Assessment prepared in accordance with the	Social Impact Assessment.	Noted – the proposal will be supported by a Social Impact Assessment.



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<i>Social Impact Assessment Guidelines for State Significant Projects.</i>		
22. Infrastructure Requirements and Utilities ▪ In consultation with relevant service providers: ○ assess the impacts of the development on existing utility infrastructure and service provider assets surrounding the site. ○ identify any infrastructure upgrades required on-site and off-site to facilitate the development and any arrangements to ensure that the upgrades will be implemented on time and be maintained. ○ provide an infrastructure delivery and staging plan, including a description of how infrastructure requirements would be co-ordinated, funded and delivered to facilitate the development.	Infrastructure Delivery, Management and Staging Plan.	Noted – the proposal will be supported by an Infrastructure Delivery, Management and Staging Plan.
23. Bush Fire Risk ▪ If the development is on bush fire prone land, provide a bush fire assessment that details proposed bush fire protection measures and demonstrates compliance with <i>Planning for Bush Fire Protection</i>.	Bush Fire Assessment.	Noted – the proposal will be supported by a Bush Fire Assessment.
24. Construction, Operation and Staging ▪ If staging is proposed, provide details of how construction and operation would be managed and any impacts mitigated.	Address in EIS.	Noted – the proposal will address the requirement of this item.
25. Contributions and Public Benefit ▪ Address the requirements of any relevant contribution plan(s), planning agreement or EPI requiring a monetary contribution, dedication of land and/or works-in-kind and include details of any proposal for further material public benefit. ▪ Where the development proposes alternative public benefits or a departure from an existing contributions framework, the local council, the Department and relevant State agencies are to be consulted prior to lodgement and details,	Address in EIS.	Noted – the proposal will address the requirement of this item.



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including how comments have been addressed, are to be provided.		
26. Engagement - Detail engagement undertaken and demonstrate how it was consistent with the <i>Undertaking Engagement Guidelines for State Significant Projects</i>. Detail how issues raised and feedback provided have been considered and responded to in the project. In particular, applicants must consult with: - the relevant Department assessment team. - any relevant local councils. - any relevant agencies. - the community. - if the development would have required an approval or authorisation under another Act but for the application of s 4.41 of the EP&A Act or requires an approval or authorisation under another Act to be applied consistently by s 4.42 of the EP&A Act, the agency relevant to that approval or authorisation.	Engagement report.	Noted – the proposal will be supported by an Engagement Report, in accordance with the <i>Undertaking Engagement Guidelines for State Significant Projects</i> .

The proposal is considered to meet the eligibility criteria for industry-specific SEARs. As such, it is requested that NSW DPHI issue formal SEARs for the preparation of an EIS for this proposal as SSD.

Should you require any further information to do so, please do not hesitate to contact the undersigned.

Yours sincerely,



Andrew Cowan
Director
Willowtree Planning Pty Ltd

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Appendix 1 Concept Plans prepared by Greenbox

